Administrative Review Tribunal

ADMINISTRATIVE REVIEW TRIBUNAL	**)**	
	)	No: 2023/3361 2023/3363 2023/4494
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

AFFIDAVIT OF VIDA REID AFFIRMED JANUARY 2025

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I, VIDA REID, of 96 Amethyst Crescent Mount Richon 6112, unemployed, in the State of Western Australia, sincerely declare and affirm as follows:

1. I make this affidavit in support of the application to stay these proceedings on behalf of Forward Focused Group Pty Ltd (**FFG**) and on my own behalf.

Background

2. I was born on 11 January 1987 in Iran.

3. I grew up primarily in Malaysia and moved to Australia on 1 October 2011.

4. I was a registered director of FFG from 28 August 2020 to 1 November 2022.

5. Attached and marked "**VR-1**" is a true copy of a current and historical company extract in respect of FFG.

6. I was the subject of a criminal prosecution initiated by the National Disability Insurance Agency (**NDIA**) on or about 18 October 2022.

7. On or about 23 February 2024, that prosecution was dismissed for want of prosecution.

8. Attached and marked "**VR-2**" is a true copy of the "Outcome Details" in relation to the prosecution dated 26 February 2024.

Australian Border Force

9. On or about 25 September 2024, my family and I were at Perth International Airport set to board flight No. QZ537 destined for Bali, Indonesia.

10. My family includes my husband, Simon Reid, and my children, Alex and Atrisa.

11. Alex is 9 years of age. Alex suffers from conditions including Autism level 3, Global Developmental Delay, Speech Delay, Attention Deficit Disorder, Attention-Deficit/Hyperactivity Disorder, Profound Intellectual Disability and Speech Impairment.

12. My daughter is now 16 years of age. She was 15 at the time of the events described below.

13. On that day, my family and I were stopped by persons who identified themselves as belonging to the Australian Border Force (**ABF**). We were stopped at the immigration gates, which would not open for us to pass through after about 5

minutes of waiting. I could see the ABF officers pointing to us and making phone calls from their desk which was behind the automatic gates.

14. A female ABF officer approached us. Although I do not recall the precise words she used, I recall the gist of what she said, being, that she would open the gates but we must immediately go to the left hand side and wait for a few officers who will come down and want to speak to us.

15. There were four to six ABF officers in the group who approached us. One of the officer's names was Julian. I cannot remember the other male officers' names, but I recall that one of them was of Asian ethnicity. I observed the officers make several phone calls and then other officers came towards us, who were asked by the officers already standing with us to take our luggage from the plane.

16. I asked the officers why we were being stopped. I do not recall the exact words used, but I recall the gist of the conversation, being:

    16.1. One of the officers asked us if we had been in any trouble lately;

    16.2. Simon responded by saying, yes, my wife was charged with fraud by the NDIS;

    16.3. One of the officers then responded by saying, yes that's right, this is why we have stopped you, it has to do with that;

    16.4. I then turned to them and said, I went to court and all charges have been dropped, why are you doing this?

    16.5. One of the officers said to me, the NDIS and the NDIS minister have asked us to search you every time you enter or leave the Country, we're just doing our jobs and we get our orders from the top;

    16.6. Simon said, why, the charges have been dropped?

    16.7. One of the officers responded by saying, you have been put on a list and have been flagged and we have been instructed to stop you every time you come across the border.

17. My family and I were then detained by the ABF officers and searched for about three hours. When I say "detained", I mean we had our passports taken from us, meaning we could not go back as the gates were locked behind us, or go forward to board our flight, and we were told we could not leave.

18. We were taken to an area that was separated from everyone else at the airport. We were told we could not move until told otherwise, and any disagreements may lead to our arrest. The officers took Simon's phone and my phone.

19. The officers searched us at a metal table and took our other electronic devices. The officers took our devices to a different room which an officer told us was where the data would be downloaded and copied over.

20. One of the officers asked Simon for the passcode to his phone. I cannot recall the exact words used, but I recall the gist of the conversation, being:

    20.1. Simon said that he could not remember the passcode as he used a thumbprint reader to access the phone;

    20.2. Julian and/or the other Asian background officer said something to insinuate that Simon was lying, and then took Simon's phone and said they would send it to Canberra to be "jailbroken" and that this will wipe his apps and data.

21. Around this time, our son was visibly becoming quite distressed while the officers were raising their voices at us.

22. Our son also has trouble staying still for extended periods and was running around everywhere.

23. During this time:

    23.1. The officers searched our belongings, including my daughter's luggage which they had brought back from the plane and asked her to unlock. The officers went through all her belongings including her underwear, clothes, bra and sanitary pads;

    23.2. The officers asked me about a cheap fake gold ring they found in my daughter's suitcase and asked me what it was;

    23.3. The officers took my son's bag of story books away from him, even though I asked them not to, telling them that he has disabilities and is attached to the books. The officers went through the books one-by-one while my son was screaming for them back, visibly quite distressed;

    23.4. The electronic devices the officers took included my phone, Simon's phone, and both our Surface Pro laptops. When taking these items the officers told

us, in substance, that they did not need our consent under the customs laws and have the powers to do what they want;

23.5. I asked on more than one occasion for permission to contact our lawyers, which they refused;

23.6. We were not advised of any rights we had during this process. We informed the officers on various occasions that there were items of legal professional privilege amongst our electronics to which they responded by stating, in substance, that legal professional privilege does not apply to them at Border Force;

23.7. We were explicitly instructed to unlock the devices to allow their direct connection for data extraction, being stated to us that, in substance, without unlocking, the devices could neither be searched nor the content downloaded. We were further warned that if we refused to comply, the devices would be confiscated, accessed, and searched at a later time regardless of our consent;

23.8. The officers stated, in substance, that we could be arrested and detained for longer if we failed to cooperate. We complied with their requests in these circumstances, as I felt we had no other choice under duress. They plugged the phones into machines, and my phone was not the same when returned to me. For example, different apps were open, passwords were deleted and things searched including conversations with our legal teams, which I could see as several messages were left open;

23.9. The officers made copies of paperwork we had with us despite our claims for legal professional privilege.

24. The officers did not return Simon's iPhone 11 to him on that day. One of the officers said that they did not know when or if they would return the iPhone 11 to us. We eventually received an email on or about 2 December 2024 from OSCG Perth Airport stating the iPhone 11 was now in Perth Airport ready for us.

25. Simon and I instructed the law firm Hammond Legal to write to the ABF about these events.

26. Attached and marked "**VR-3**" are true copies of letters dated 10 October 2024, 14 October 2024 and 23 October 2024 between Hammond Legal and the ABF.

27. On or about 9 October 2024, my daughter Atrisa travelled from Bali to Perth on her own, as she had to finish her final exams and school year.

28. Atrisa has since told me, and I verily believe, that when she was at the airport:

    28.1. She heard an ABF officer saying something to the effect of, we got one of them;

    28.2. She was stopped by an ABF officer who asked her questions about who she was travelling with and where her mother was;

    28.3. Whilst being questioned, one of the same officers who searched us on the previous occasion (when we were travelling from Perth to Bali) was observing from a few feet away;

    28.4. She was questioned about who will be picking her up from the airport and their relationship to her;

    28.5. The officer did not ask her whether she wanted to call a parent.

29. Atrisa was still 15 years old during this time.

30. On or about 17 November 2024, when Atrisa was returning from Perth to Bali, I received a call from her phone and a person who identified themselves as an ABF officer asked me if Atrisa was okay to travel and stated that it is their procedure to speak to a parent regarding arrivals and/or departures to ensure the child's safety.

Virginie Fanny-Dullo

31. I was in Indonesia during the events described below.

32. On or about 7 January 2025 at 9.32AM, I received a telephone call from Jean-Francois Dulloo (**Jean-Francois**). I know Jean-Francois to be the husband of Virgine Fanny-Dulloo (**Virginie**).

33. Virginie used to work with us at FFG and Hybrid Hive. She worked there from about November 2021 to November 2022.

34. It was very unusual to receive a call from Jean-Francois as he never really calls me.

35. I cannot recall the exact words used, however I recall the gist of what Jean-Francois said, being:

35.1. The NDIS investigators are at our house and have forced themselves in telling Virginie she has no choice but to speak to them;

35.2. The NDIS investigators have been there for some time now;

35.3. Can you please call Virginie as soon as possible.

36. I said to Jean-Francois, in substance, that I was not sure what I could do but that I was happy to call her.

37. I called Virginie's phone but there was no answer.

38. At about 10:39 AM, Jean-Francois called me back via video call with Virginie.

39. I do not recall the exact words used, however I recall the gist of the conversation, being:

39.1. Jean-Francois said the NDIS investigators had left;

39.2. Virginie said that a person from the NDIS called John Maloney and a female NDIS investigator, who did not provide her name, were at her house and they interrogated her for about two hours;

39.3. Virginie said that John Maloney said to her:

(a) I have enough evidence to put forward to the DPP to throw you in prison, unless you are willing to sign a witness statement and give us what we want;

(b) Vida is a liar, a manipulative person and we want your help to throw Vida in prison;

(c) You can work with the NDIS and there will be no consequences for you, or we can put your face all over the news like we did to Vida;

39.4. Virginie said that she asked to speak to a lawyer before she decided what to do;

39.5. Virginie said that John Maloney responded by saying:

(a) You have 24 hours to make up your mind;

(b) We have enough evidence to give to the DPP and throw you in prison for a very long time unless you give me a statement I can use against Vida;

(c) We know Vida is in Bali and is not coming back;

(d) We have been listening to all your phone calls with Vida and are continuously monitoring Vida's movements, calls and messages and are aware you haven't been speaking to her for a while;

(e) You can protect yourself and give us a statement or you go to jail, which is it going to be?

(f) You have until tomorrow to call us or we will proceed with prosecuting you;

(g) It's your neck or her neck, what's it going to be?;

39.6. Virginie said that the investigators asked her more questions about me, FFG, and her own previous NDIS company which she was a director of called Dream BIG.

Affirmed by the deponent, **Vida Reid**)
at , in Indonesia)
on January 2025.)

_____
Signature

Before me)
)
)

_____
Signature

ASIC
Australian Securities & Investments Commission

Current & Historical Company Extract

Name: FORWARD FOCUSED GROUP PTY LTD.
ACN: 643 878 639

Date/Time: 11 November 2024 AEST 01:45:36 PM

This extract contains information derived from the Australian Securities and Investments Commission's (ASIC) database under section 1274A of the Corporations Act 2001.

Please advise ASIC of any error or omission which you may identify.

EXTRACT

Organisation Details		Document Number
Current Organisation Details		
Name:	FORWARD FOCUSED GROUP PTY LTD.	4EAA78119
ACN:	643 878 639	
ABN:	98643878639	
Registered in:	Western Australia	
Registration date:	28/08/2020	
Next review date:	28/08/2025	
Name start date:	28/08/2020	
Status:	Registered	
Company type:	Australian Proprietary Company	
Class:	Limited By Shares	
Subclass:	Proprietary Company	

Address Details		Document Number
Current		
Registered address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	7ECN69504
Start date:	29/01/2024	
Principal Place Of Business address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	7ECN69504
Start date:	30/12/2022	
Historical		
Registered address:	Unit 2, 210 Jull Street, ARMADALE WA 6112	7EBY19440
Start date:	15/11/2022	
Cease date:	28/01/2024	
Registered address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	4EAA78119
Start date:	28/08/2020	
Cease date:	14/11/2022	
Principal Place Of Business address:	Unit 2, 210 Jull Street, ARMADALE WA 6112	7EBY19440
Start date:	01/08/2021	
Cease date:	29/12/2022	
Principal Place Of Business address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	4EAA78119
Start date:	28/08/2020	
Cease date:	31/07/2021	

Contact Address	
Section 146A of the Corporations Act 2001 states 'A contact address is the address to which communications and notices are sent from ASIC to the company'.	
Current	
Address:	Unit 2, 8 Leslie Street, CANNINGTON WA 6107
Start date:	24/08/2022
Historical	

Address:	PO BOX 315, KELMSCOTT WA 6991
Start date:	28/10/2020
Cease date:	24/08/2022

Officeholders and Other Roles		Document Number
Director		
Name:	SIMON ASHLEY REID	7ECN69504
Address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	
Born:	17/09/1981, SUBIACO, WA	
Appointment date:	01/11/2022	
Secretary		
Name:	SIMON ASHLEY REID	7ECN69504
Address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	
Born:	17/09/1981, SUBIACO, WA	
Appointment date:	01/11/2022	
Previous Director		
Name:	TORI VINCE	7EBY81506
Address:	6 Oakham Way, ORELIA WA 6167	
Born:	13/03/1993, MELBOURNE, VIC	
Appointment date:	21/10/2022	
Cease date:	22/01/2024	
Name:	VIDA REID	4EAA78119
Address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	
Born:	11/01/1987, , ISLAMIC REPUBLIC OF IRAN	
Appointment date:	28/08/2020	
Cease date:	01/11/2022	
Name:	SIMON REID	4EAA78119
Address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	
Born:	17/09/1981, PERTH, WA	
Appointment date:	28/08/2020	
Cease date:	03/01/2021	

Share Information

Share Structure

Class	Description	Number issued	Total amount paid	Total amount unpaid	Document number
FOU	FOUNDER'S	100	100.00	0.00	7EBO37841

Members

Note: For each class of shares issued by a proprietary company, ASIC records the details of the top twenty members of the class (based on shareholdings). The details of any other members holding the same number of shares as the twentieth ranked member will also be recorded by ASIC on the database. Where available, historical records show that a member has ceased to be ranked amongst the top twenty members. This may, but does not necessarily mean, that they have ceased to be a member of the company.

Name:	VIDA REID
Address:	Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	95	no	FULLY	7EBV96910

Name: MD REJAUL ALAM
Address: Unit 2, 8 Leslie Street, CANNINGTON WA 6107

Class	Number held	Beneficially held	Paid	Document number
FOU	5	no	FULLY	7EBV96910

Previous Members

Name: REJAUL ALAM
Address: Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	5	yes	FULLY	7EBO37841

Name: VIDA REID
Address: 96 Amethyst Crescent, MOUNT RICHON WA 6112
Name: SIMON REID
Address: 96 Amethyst Crescent, MOUNT RICHON WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	2	yes	FULLY	031024617

Name: VIDA REID
Address: Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	48	yes	FULLY	7EBO37841

Name: SIMON REID
Address: Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	47	yes	FULLY	7EBO37841

Documents

Note: Where no Date Processed is shown, the document in question has not been processed. In these instances care should be taken in using information that may be updated by the document when it is processed. Where the Date Processed is shown but there is a zero under No Pages, the document has been processed but a copy is not yet available.

Date received	Form type	Date processed	Number of pages	Effective date	Document number
28/08/2020	201C Application For Registration As A Proprietary Company	28/08/2020	4	28/08/2020	4EAA78119
02/11/2020	902 Supplementary Document	07/12/2020	2	28/08/2020	031024617
19/12/2021	484 Change To Company Details 484O Changes To Share Structure 484G Notification Of Share Issue 484N Changes To (Members) Share Holdings	19/12/2021	4	19/12/2021	7EBO37841
03/01/2022	484E Change To Company Details Appointment Or Cessation Of A Company Officeholder	03/01/2022	2	03/01/2022	7EBO60966
01/09/2022	484N Change To Company Details Changes To (Members) Share Holdings	01/09/2022	3	01/09/2022	7EBV96910
08/11/2022	484 Change To Company Details 484B Change Of Registered Address 484C Change Of Principal Place Of Business (Address) 484E Appointment Or Cessation Of A Company Officeholder	08/11/2022	2	08/11/2022	7EBY19440
08/11/2022	484E Change To Company Details Appointment Or Cessation Of A Company Officeholder	08/11/2022	2	08/11/2022	7EBY19834
25/11/2022	484E Change To Company Details Appointment Or Cessation Of A Company Officeholder	25/11/2022	2	25/11/2022	7EBY81506
22/01/2024	484 Change To Company Details 484B Change Of Registered Address 484C Change Of Principal Place Of	22/01/2024	3	22/01/2024	7ECN69504

	Business (Address) 484A1 Change Officeholder Name Or Address 484E Appointment Or Cessation Of A Company Officeholder 484E1 Cessation Of Company Director Later Than 28 Days				

*****End of Extract of 5 Pages*****

Outcome Details

Result Type: Dismissed For Want of Prosecution - s25 Judicial Officer: Magistrate G RANDAZZO
Result Date: 23/02/2024

Result Reason: Confirmed: 23/02/2024 10:21

Charges

Count	Charge	Offence	Appearance Reason
0	PE 45658/2022	Did anything with the the intention of dishonestly causing a loss to a Commonwealth entity	Committal Mention
0	PE 45657/2022	Did anything with the the intention of dishonestly causing a loss to a Commonwealth entity	Committal Mention
0	PE 45655/2022	Dealt with property reasonably suspected of being proceeds of crime and valued at $100,000 or more	Committal Mention
0	PE 45656/2022	Dealt with property reasonably suspected of being proceeds of crime and valued at $100,000 or more	Committal Mention

HAMMOND LEGAL

17 Rheola Street, West Perth WA 6005
T +61 8 6311 7080 | F +61 8 6311 7081
www.hammondlegal.com.au
ABN 15 623 425 696

Our ref: 1944

John Hammond | Director
john@hammondlegal.com.au

Daniel Rice | Senior Associate
daniel@hammondlegal.com.au

10 October 2024

PRIVATE & CONFIDENTIAL

Australian Border Force

By email: OSCGPerthAirport@abf.gov.au

To the Proper Officer,

Mr & Mrs Simon and Vida Reid
Search and Seizure – Perth International Airpoirt – 25 September 2024

We refer to the above matter.

1. We act for Mr & Mrs Simon and Vida Reid.
2. Our clients have instructed us that on 25 September 2024 at Perth International Airport our clients were set to board flight No. QZ537 destined for Bali Indonesia when they were apprehended by Australian Border Force **(ABF)** staff.
3. We are instructed that the ABF staff detained our clients for a period of about three hours during which time the ABF staff:
    a. searched our clients' belongings including their children's belongings, one of whom has disabilities;
    b. seized their electronic devices;
    c. advised our clients they had made copies of the contents of the electronic devices. We are instructed those devices contained sensitive information that may be subject to Legal Professional Privilege; and
    d. retained Mr Reid's iPhone 11. We refer to the Receipt of Goods No. 195253 provided to Mr Reid.
4. We are instructed that ABF staff advised our clients that the ABF had been alerted by persons on behalf of the National Disability Insurance Agency **(NDIA)** that our clients are in effect persons of interest.
5. The information conveyed by persons on behalf of the NDIA therefore appears to form the basis for the ABF's targeting of our clients.
6. Mrs Reid was the subject of a criminal prosecution initiated by the NDIA. Those proceedings were dismissed for want of prosecution on 23 February 2024 in the Perth Magistrates Court.

Liability Limited by a Scheme approved under the Professional Standards Legislation.

7. In circumstances that there is no pending investigation or charges against our clients, and our clients have not been convicted for any offences concerning a federal authority, it would appear that the ABF did not have a legitimate purpose to target our clients in the manner in which they did.

8. We therefore request particulars as to:

   a. the basis for which our clients were detained, searched and had their property seized; and

   b. with reference to s 186A of the *Customs Act* 1901, the basis for which the contents of our clients' electronic devices were copied.

9. Lastly, we request that Mr Reid's iPhone 11 be returned to him immediately and confirmation that any data extracted and copied from our client's electronic devices be permanently deleted and not used for any purpose.

10. We request that this correspondence be forwarded to persons in your organisation with authority to deal with the matters contained herein.

11. We look forward to your reply as a matter of urgency.

If you have any queries, please make contact.

Yours sincerely

Hammond Legal

HAMMOND LEGAL

Australian
BORDER FORCE

14 October 2024

Hammond Legal
By Email: daniel@hammondlegal.com.au

You ref: 1944

Dear Hammond Legal

Thank you for your correspondence dated 10 October 2024 where you advise that you act for Mr and Mrs Simon and Vida Reid.

We have, below, responded to your request for further particulars in regards to the matters you raised in paragraph eight of your correspondence.

The basis for detention, searches and property seizure

With respect to your clients' interactions with the Australian Border Force (ABF) on 25 September 2024 at the Perth International Airport, I can advise that at no point were they subject to detention, or was any of their property seized.

Goods belonging to your clients were examined by the ABF in accordance with the sections of the Customs Act referenced below. Your clients were present during their examination but they were not compelled to remain with their goods at the screening point by the ABF.

Under section 186 of the *Customs Act 1901 (Customs Act)*, ABF officers are entitled to examine goods (including electronic devices) subject to customs control.

Section 30 of the Customs Act provides for when goods are subject to customs control.

Section 30(d) of the Customs Act provides, as far as relevant, that good subject to customs control includes goods 'from the time the goods are brought into, any prescribed place for export, until their exportation to a place outside Australia'.

Perth International Airport is a prescribed place for export for the purposes of section 30(d).

As such, ABF officers were empowered to examine the goods, belonging to your clients' – that were brought to Perth International airport on 25 September 2024 and which were destined for an overseas location (in this case Indonesia).

ABF Officers may as a part of their examining of goods:

- Open any package in which goods are or may be contained
- Use a device such as an x-ray machine, ion scanning equipment or available technologies on the goods
- Test or analyse the goods

- Measure or count the goods
- If the goods are a document, read the document either directly or with the use of an electronic device
- Use detector dogs to assist in examining the goods

Copies of electronic devices

I confirm that ABF has not, under section 186A of the Customs Act, made any copies of your clients' electronic devices.

Return of device and LPP claim

I confirm that Mr Simon Reid's mobile device – IPhone – IMEI – 35166476996627 is currently being held by the ABF pending examination under section 186 of the Customs Act.

If your client is claiming legal professional privilege (LPP) in respect to this device we invite your clients to provide particulars of their claim for LPP in the next 14 days.

We confirm that the ABF will not copy or review any of the content of the device until receipt of their particularised claims on or before **4pm on 28 October 2024** being fourteen (14) days from 14 October 2024. However if ABF does not receive a response to this invitation to particularise the claim of LPP on or before 4pm on the 28 October 2024, the ABF will review the data on your clients phone.

The ABF will assess any claims for LPP in good faith and promptly identify any material in respect of which a claim is accepted or not contested and notify your clients. The ABF will otherwise review data on your client's phone that is not particularised as being subject to LPP.

The ABF will not review or rely on such material identified as subject of a claim of LPP by your clients, and as practicable, will maintain it as quarantined data. The ABF may request additional information from your clients in respect of any material identified as LPP that it is reasonably necessary for the ABF to determine whether a claim of LPP is justified. The ABF will work with your clients in good faith to resolve any disputed claims of LPP.

When particularising the claim can you please have your clients provide the document identification details required to ensure that the material can be quarantined and excluded from any examination if the event the LPP claim is accepted. We also ask that your clients provides the following details for each document they assert is covered by LPP:

- Specific grounds on which LPP is claimed;
- Facts relied upon giving rise to a claim of LPP; and
- Whether LPP is claimed over whole or part of the document.

If following reasonable attempts to resolve any disputed claims of LPP the claims remain unresolved, the ABF will notify your clients in writing that it does not accept a claim of LPP in respect of any material identified by your clients and provide your client with seven (7) days to commence proceedings to establish the privilege claimed. Should

proceedings not be commenced within seven (7) days, on the 8th day the ABF will review all of the potential LPP material on the basis that no LPP claim has been made by your clients with respect of that material.

Yours sincerely

Karen 56550
A/g Inspector
WA Aviation Management
Australian Border Force

HAMMOND LEGAL

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www.hammondlegal.com.au
ABN 15 623 425 696

23 October 2024

Our ref: 1944

John Hammond | Director
john@hammondlegal.com.au

Daniel Rice | Senior Associate
daniel@hammondlegal.com.au

PRIVATE & CONFIDENTIAL
Karen 56550
A/g Inspector
WA Aviation Management
Australian Border Force

By email: OSCGPerthAirport@abf.gov.au

Dear Karen,

Mr & Mrs Simon and Vida Reid
Search and Seizure – Perth International Airpoirt – 25 September 2024

We refer to your letter of 14 October 2024.

1. We have serious concerns for not only the conduct of the customs officer's as alleged by our clients as stated in our letter of 10 October 2024 but also in your response dated 14 October 2024.

2. The officers' conduct as alleged and your response to our correspondence appears to demonstrate a serious misunderstanding of the powers available to customs officers under the *Customs Act* 1901 **(the Act)**.

3. Our view is that the customs officer's conduct in apprehending our clients without a proper basis and seizing Mr Reid's mobile telephone was not done in accordance with the Act and amounts to gross invasion of our client's privacy.

4. Our clients further maintain their position that copies were made of their electronic devices pursuant to s186A(2) and that their devices were seized for a considerable time to effect this process. We are instructed that statements made by the customs officers are inconsistent with your denial that no copies were made of their electronic devices.

5. In reference to the above, we refer to the decision of *DPP (Cth) v Farmer (a Pseudonym) and Ors* [2017] VSCA 292, in which Priest JA stated at [207]:

> *"Recognising that the Customs Act 1901 is concerned with both the exaction of revenue and the control of prohibited or restricted matter, it is consistent with the purposes and objects of the Act, and with the ordinary and natural meaning of the term, to conclude that export means taking goods out of Australia with the intention of landing them at some place beyond Australian territory. To that extent, export has connotations of a one-way journey of goods from Australia to an ultimate*

destination in another place outside Australia. Ordinarily, conveying the personal effects of a passenger — reading glasses, watch, wedding ring, wallet, camera and the like — from the country with no intention that they be landed in another, could not properly be described as an export of those personal effects. In the present case it could not accurately be said that there was any evidence that could justify the conclusion that the telephone accompanying Farmer on 14 April 2013 was to be landed in another country, let alone that it might attract duty, or that it was, or contained, prohibited goods. In my opinion, therefore, the telephone was not 'goods for export', and hence was not 'subject to the control of customs'. Accordingly, the officers' powers under ss186 and 186A were not engaged."

6. We note that you have not adequately addressed paragraph 8 of our letter dated 10 October 2024.

7. With reference to *Farmer*, please advise how the customs officers' apprehension, searching, and possible copying of our clients' devices falls within the scope of the Act. What breach of the Act or associated legislation were our clients reasonably suspected to have committed?

8. We refer to the Schedule herein that shows the sources of communications and documents received by our clients from their legal advisors in respect to litigious matters that are or may be contained on Mr Reid's phone, as well as in any other material held by the Australian Border Force **(ABF)**.

9. We otherwise request:

    a. the immediate return of Mr Reid's mobile phone;

    b. confirmation of the destruction of any materials that may have been copied in accordance with section 186A(2) of the Act;

    c. a formal apology to our clients and an assurance that our client's will not receive further improper treatment when leaving or entering Australia.

10. In the event the ABF is not agreeable to the matters described in the preceding paragraph, we request the provision of all file notes, memorandums and reports made in relation to the events that concerned our clients on 25 September 2024.

11. Our clients otherwise reserve the right to take further action.

12. We look forward to your reply.

If you have any queries, please make contact.

Yours sincerely



HAMMOND LEGAL

SCHEDULE OF SOURCES OF LPP MATERIAL

1. NDIS@legalaid.wa.gov.au - Nicole Smedley
2. Melissa Evans- NDIS Appeals Solicitor (Part time – Mondays and Thursdays)- Civil Law Division
3. Melissa.Evans@legalaid.wa.gov.au
4. Megan.McCormack@legalaid.wa.gov.au
5. s.howarth@sscls.asn.au - Legal assistance with NDIS for my son
6. any and all legal aid emails
7. Ryan from Avery Ashoorian law firm ryan@averyashoorian.com
8. Nathan Ebbs - nebbs@bennettlaw.com.au
9. Martin Bennett - mbennett@bennettlaw.com.au
10. Christine Arthur - carthur@bennettlaw.com.au
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